

FIRST INFORMATION REPORT

(Under Sec.173 BNSS)

1. District: Kolkata P.S: BS&FB Kolkata
Year: 2024
FIR No.: RC2152024E0001 Date: 24/12/2024

2. Acts & Sections:

Acts	Sections	Remarks
IPC	120 B	
IPC	409	
IPC	420	
IPC	477A	
PC Act-1988	13(2) r/w 13(1)(d)	

3. Suspected offences: Bank Fraud

(a) Occurrence of offence:

Day: Time Period:
From Date: 2017 To Date: 2023

(b) Information Received at PS: BSFB KOLKATA

Date: 17/12/2024

(c) General Diary Reference:

Entry No.: 06
Date: 24/12/2024 Time: 14:58:49

4. Type of Information: Written

5. Place of Occurrence:

(a) Place of Occurrence: STATE BANK OF INDIA, COMMERCIAL BRANCH, GUWAHATI, ASSAM

(b) Direction & distance from PS: TOWARDS EAST AND 1000 KM APPOX.

Beat No.:

(c) Address:

Plot No.: ABC, 3RD FLOOR, SWAGOTA Area:
SQUARE, GS ROAD, ABOVE SOH
City: GUWAHATI Pin: 781005
State: Assam District: Kamrup Metropolitan

(d) In case, outside the limit of this Police Station, then

Name of PS: District:

6. Complainant / Informant:

Complainant 1

(a) Name: Mr. POONKOMAN R
(b) Father's/Husband's Name: RANGASAMAY
(c) Date/Year of Birth: 07/08/1972
(d) Nationality: INDIAN
(e) Passport:

Passport No.	Date Of Issue	Place Of Issue

(f) **Occupation:** DEPUTY GENERAL MANAGER

(g) **Address :**

Plot No	Area	City	State	District	Pin

7. Details of known/suspected/unknown accused with full particulars:

Accused 1

Name: Mr.MANOJ KUMAR GOYAL(1), **Father/Husband name:** RAM NIWAS GOYAL

Address:

FLAT NO 1A, FIRST FLOOR, R.R. RESIDENCY, K.C ROAD, CHATTRIBARI, GAUWHATI, Kamrup
Metropolitan, Assam, 781001

Accused 2

Name: Mrs.POOJA GOYAL(2), **Father/Husband name:** MANOJ KUMAR GOYAL

Address:

FLAT NO 1A, FIRST FLOOR, R.R. RESIDENCY, K.C. ROAD, CHATTRIBARI, GAUWAHATI, Kamrup
Metropolitan, Assam, 781001

Accused 3

Name: M/S POOJA TILES AND SANITARY PVT LTD(3)

Address:

PLOT NO 1A, BRAMAPUTRA INDUSTRIAL PARK GAURIPUR, ANIMGAON, GUWAHATI, Kamrup
Metropolitan, Assam, 781031

Accused 4

Name: Unknown Public Servant(s) & Private Person(s)

Address:

8. Reasons for delay in reporting by the complainant/informant:

NA

9. Particulars of properties Stolen:

Item Name	Age of Property	Estimated Cost(in INR)

10. Total value of property stolen:

11. Inquest Report/U.D. Case No., if any:

12. First information contents:

The complaint lodged by Shri. Poonkoman R, Deputy General Manager, State Bank of India, Stressed Assets Management Branch –II, Jeevendee Building (10th Floor) 1, Middleton Street, Kolkata – 700 071 bearing Ref. No. SAMB-II/KOL/CLO-I/2024-25/451 dated 22.10.2024 addressed to The Joint Director, BS&F Zone, Central Bureau of Investigation (CBI), Head Office, Plot No 5-B, 10th Floor, CGO Complex, Lodhi Road, New Delhi – 110003, and the copy of the same compliant has been forwarded by the Banking Complaint Cell, CBI, New Delhi and assigned to our office for further necessary action. Copy of the complaint **Separate sheet attached**

13. Action taken : Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2:

(1) Registered the case and took up the investigation: Yes

OR

(2) Directed

Name of IO:

Akash Kumar Sharma

Rank:

INSPECTOR (BS&FB Kolkata)

No:

178888

to take the investigation OR

(3) Refused investigation due to:

OR

(4) Transferred To PS:

District:

on point Of Jurisdiction.

Attached Documents:

Document Name

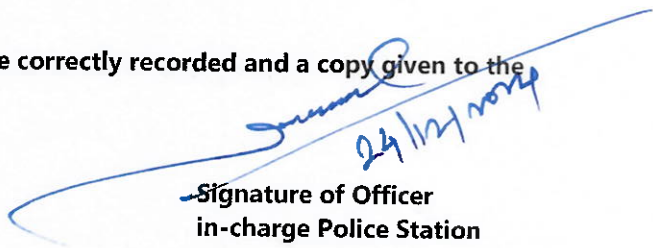
FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

R.O.A.C.

14. Signature/Thumb Impression of the complainant/informant

Name:

Rank:


Signature of Officer
in-charge Police Station

SR. SUPERINTENDENT OF POLICE
(BS&FB Kolkata)

DR. M. R. KADOLE
Sr. S.P & Head of Branch
CBI; BSFB; Kolkata

15. Date and time of dispatch to the Court:



Dy. No. 891(D) /HOZ/BS&FZ

Date 29/10/2024

ভারতীয় স্টেট ব্যাংক

भारतीय स्टेट बैंक

STATE BANK OF INDIA

The Joint Director, BS & F Zone,
Central Bureau of Investigation (CBI),
Head Office, Plot No. 5-B, 10th Floor,
CGO Complex, Lodhi Road,
New Delhi-110003

Dy. No. 1739
SP/Bank Complaint Cell
Date 30-10-2024

Ref: SAMB-II/KOL/CLO-II/2024-25/ 451

Date: 22.10.2024

Dear Sir,

Subject: Request for registration of First Information Report (FIR) against M/s Pooja Tiles and Sanitary Private Limited, its Promoters/ Directors, unknown Public Servants and unknown others for commission of offence of criminal conspiracy, cheating, dishonest misappropriation of property, criminal breach of trust, criminal misconduct

The State Bank of India (SBI) is a Body Corporate constituted under the State Bank of India Act, 1955 having its Corporate Office at State Bank Bhawan, Madam Cama Road, Nariman Point, Mumbai -400021.

I, Poonkoman R, S/o Shri Rangasamy, aged about 52 years, working as Deputy General Manager, State Bank of India, Stressed Assets Management Branch II, Kolkata have been authorized by the Competent Authority of the Bank to lodge this complaint with CBI for and on behalf of State Bank of India against erstwhile Promoters/ Directors of M/s Pooja Tiles and Sanitary Private Limited and Unknown Public Servants and Unknown Others for defrauding and causing wrongful loss to SBI amounting to Rs.56.62 crores as on 31.01.2023

In compliance of the Judgement of the Hon'ble Supreme Court dated 27th March, 2023, the Bank had issued Show Cause Notice dated 09.01.2024 and 24.04.2024 to M/s Pooja Tiles and Sanitary Pvt. Ltd. and its Directors / Promoters / Guarantors, calling upon them to explain within 15 days as to why the account of M/s Pooja Tiles and Sanitary Pvt. Ltd. should not be declared as fraud. The Directors / Promoters did not submit any reply to the said Show Cause Notice within the specified time. Accordingly, the Competent Authority of the Bank has declared the account of M/s Pooja Tiles and Sanitary Pvt. Ltd. as fraud on 11.06.2024.

Yours faithfully,

(Poonkoman R)
Deputy General Manager

bank.sbi

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+9133 2288 0200

+9133 2288 0233

sbi.18192@sbi.co.in

প্রতিবন্ধ পরিসম্পদ ব্যবস্থাপন শাখা - ২

জীবনদীপ বিল্ডিং (১০ তল)

১, মিডলটন স্ট্রীট

কলকাতা - ৭০০ ০৭১

তনাবম্পন্ন অস্থি প্রবন্ধন শাখা - II

জীবনদীপ বিল্ডিং (10 মজিল)

1, মিডলটন স্ট্রীট

কলকাতা - 700 071

Stressed Assets Management Branch-II

Jeevandeep Building (10th Floor)

1, Middleton Street

Kolkata - 700 071

1.	Name of the Bank	State Bank of India												
2.	Name and full address of the Branch	State Bank of India, Stressed Assets Management Branch-II, Kolkata, 10 th Floor, Jeevandeep Building, 1, Middleton Street, Kolkata 700071												
3.	Date of lodging of Complaint	22.10.2024												
4.	Time, date & place of occurrence of fraud: The fraud perpetrated by the accused persons came to light when Forensic Auditor, M/s R Choudhary & Associates submitted their Report dated 06.12.2023. The Forensic Audit was conducted for the period from 01.01.2021 to 31.01.2023. The fraud has taken place at SBI, Commercial Branch, Guwahati where the accused persons, in conspiracy with each other, had obtained the credit facilities by misrepresentation, deception and inducement and misappropriated the funds of the Bank by conducting transactions which were in violation of the terms and conditions of sanction of the credit facilities. The details related to NPA & Fraud perpetrated by the Company, M/s Pooja Tiles and Sanitary Private Limited and its erstwhile Directors / Promoters are as under: <table border="1"> <thead> <tr> <th>Particulars</th> <th>Date / Amount (Cr.)</th> </tr> </thead> <tbody> <tr> <td>Date of NPA</td> <td>31.01.2023</td> </tr> <tr> <td>Date of detection of fraud</td> <td>11.06.2024</td> </tr> <tr> <td>Date of Report of Fraud to RBI</td> <td>25.06.2024</td> </tr> <tr> <td>Fraud Folder No.</td> <td>SBI 2402-5830</td> </tr> <tr> <td>Amount of Fraud as per FMR-I reported to RBI</td> <td>56.62</td> </tr> </tbody> </table>		Particulars	Date / Amount (Cr.)	Date of NPA	31.01.2023	Date of detection of fraud	11.06.2024	Date of Report of Fraud to RBI	25.06.2024	Fraud Folder No.	SBI 2402-5830	Amount of Fraud as per FMR-I reported to RBI	56.62
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Fraud Folder No.	SBI 2402-5830													
Amount of Fraud as per FMR-I reported to RBI	56.62													
5.	Name of the Complainant Shri Poonkoman R, Deputy General Manager, State Bank of India, Stressed Assets Management Branch-II, Kolkata, 10th Floor, Jeevandeep Building, 1, Middleton Street, Kolkata 700071.													

6. BRIEF PARTICULARS OF FRAUD

a). Brief History of the account

- M/s Pooja Tiles and Sanitary Private Limited (PTSPL), a closely held private limited Company was incorporated on 09.04.2015 with registered office at 2nd Floor, AB Complex, Near Mahavir Bhawan, A T Road, Guwahati - 781001.
- Manoj Kumar Goyal & Pooja Goyal are the Directors of the Company
 - i. Mr Manoj Kumar Goyal : Mr. Manoj Kumar Goyal s/o Sh. Ram Niwas Goyal is the Chief Promoter and has vast experience of more than 10 years in the same line of activity. He looks after the overall affairs of the Company/ Firm
 - ii. Smt. Pooja Goyal w/o Shri Manoj Kumar Goyal is one of the directors of the Company. She looks after the administration of the company. Manoj Kumar Goyal Director of M/s Pooja Tiles and Sanitary Private Limited (PTSPL) was earlier



running a proprietorship firm in the name and style of M/S Pooja Tiles & Sanitary. M/S Pooja Tiles & Sanitary was merged with M/S Pooja Tiles and Sanitary Private Limited (PTSPL) as a going concern with effect from the 1st day of May 2015. The Company was engaged in wholesale trading of floor tiles, wall tiles, sanitary wares, Chrome plated fittings etc. PTSPL has six other group concerns engaged in a similar line of business (i.e. Trading of Tiles, Ceramics, Sanitary Ware, PVC Pipes, Fittings etc.), managed by the common promoters.

Banking Arrangement:

- Initially, the unit was enjoying a FBWC limit of Rs 0.60 Cr in 2008 from West Guwahati Branch. The firm's limit was taken over from SBI by Standard Chartered Bank. SBI again sanctioned a Cash Credit limit of Rs 24.00 Cr in October, 2015. However, the limit was not availed by the company in view of alleged delay in sanctioning and the company availed the limits from Punjab National Bank and Allahabad Bank under Multiple Banking Arrangement. After a series of shifting of Banks (Standard Chartered Bank, IndusInd Bank, Punjab National Bank), the borrower Pooja Tiles, and Sanitary Private Limited was taken over from PNB and Allahabad Bank by SBI on 27.09.2017 with a limit of Rs 50.50 cr. The size of the takeover was Rs 37.00 Cr. Additionally Company has been sanctioned enhancement of Rs 13.50 cr during takeover. Takeover related approvals were accorded by WBCC II.
- The financials of the Company had been impacted by Covid 1st wave and 2nd wave. Accordingly, restructuring proposal under COVID resolution framework 2.0 was sanctioned by RCCC vide sanction dated 30.09.2021. The company has also been sanctioned CCECL limit of Rs 5.00 cr on 31.05.2020.
- Further the Company has also been sanctioned GECL 1.0 extension on 31.03.2022 of Rs 13.94 cr. In spite of the remedial measures for rehabilitation of the unit, the account turned SMA multiple times in the FY and turned NPA on 28.10.2022 and subsequently upgraded on 04.11.2022 and has again slipped into NPA on 31.01.2023. Transfer of the account, along with its associate concern M/s PTS Limited to SAMB approved by GM CCGRO II on 09.02.2023. Both the accounts were migrated to SAMB-II, Kolkata for hard recovery measures on 23.03.2023.

b). The details of various sanctions / enhancements by SBI since beginning are as under:

Amount in Rs. Crores

S N	Date of Sanction / Enhancement / Renewal	Sanction / Enhancement / Renewal	Total Limit Sanctioned	Sanctioned by
1	27.09.2017	Sanction	50.50	CCC-1 on 27.09.2017
2	11.02.2019	Enhancement	57.00	RCCC-7 on 19.01.2019
3	20.02.2020	Renewal	54.06	RCCC-7 on 17.02.2020
4	08.10.2021	Renewal	53.32	RCCC-2 on 30.09.2021
5	31.03.2022	Sanction	13.94	GM (CCGRO II) on 30.03.2022
6	30.09.2021	Sanction	7.92	RCCC-2 on 30.09.2021



c. The details of credit facilities sanctioned by State Bank of India and position of account as on 31.01.2024, are as under:

Amount in Rs. Crores

Facility	Limit	Outstanding
Fund Based		
Cash Credit *	41.50	41.58
GECL 1.0 Ext	13.94	5.03
FITL	7.92	7.17
CCECL	5.00	2.84
Total FB	68.36	56.62
Non-Fund Based		
Letter of Credit	-	-
Bank Guarantee	-	-
Total NFB	N.A.	-
CEL	-	-
Total FB + NFB	68.36	56.62

Total outstanding to SBI as on 31.01.2023 is Rs. 71.25 Crores (including notional interest, charges etc.)

Value of Security available to SBI : Rs. 48.42 Crores
(Security details at Annexure-I)

Estimated wrongful loss to SBI: Rs. 56.62 Crores, as on the date of NPA. Plus, notional interest amounting to Rs. 14.47 Crores & charges of Rs. 0.16 Crore.

d. Forensic Audit / Transaction Audit / Internal Investigation Report:

The fraud perpetrated by the accused persons came to light when Forensic Auditor, M/s R Choudhary & Associates, who were engaged by the Bank, submitted their Report dated 06.12.2023 to the Bank.

e). Major Findings of Forensic Audit Report dated 06.12.2023 are as under:

The Forensic Audit report dated 06.12.2023 submitted by M/s. R Choudhary & Associates revealed that the accused have colluded together and committed illegal activities including forgery by manipulation and submission of fake financial statement, diversion of funds and misappropriation of funds for purposes other than for the purpose for which the funds are released by the Bank. **The key observation of the Forensic Auditor are as under:**



1. **Misappropriation and criminal breach of trust - Assets financed were not purchased/created and funds borrowed from the Bank, mis-utilized/mis-appropriated for purposes other than for which the Bank had released the funds.**
 - The transfer of Rs.45.94 crores amount to a related parties without transparent documentation or apparent business justification and without adequate supporting records raises red flags regarding potential fund diversion to defraud the lender bank.
2. **Disposal / removal of pledged/hypothecated/mortgaged machinery/assets financed by the Bank (charged to the Bank) without knowledge/consent of the Bank and not deposited/routed the sale proceeds in the accounts maintained with the Bank/Branch and mis utilized the proceeds.**
 - After creation of charge in favour of SBI, the borrower mortgaged the same properties to other Banks without SBI's consent as per following details
 - Commercial land and building DAG No 807,808,809,811,815, K P. Patta No.67,98,187 situated at Plot No. 1A/B, Brahmaputra Industrial Park, North Guwahati, Guwahati-781 030. Total Areas: 2 BIGHA 3 KATHA and 10 Lechas. Subsequent to mortgaging to SBI, the mortgagor constructed further in same property and thereafter transferred to his wife's name by way of Gift Deed. Then his wife mortgaged the said gift deed with Indian Bank. Further, from the report dated 20.09.2023 of Investigating Agency M/s SLO Technologies Private Ltd. We have come to know that the same property has also been mortgaged with some other banks viz Canara Bank, and BOB
 - Residential Flat No 1A, First Floor, R.R. Residency, K.C. Road, Chatribari, Guwahati 781 001 (urban). Total area of flat 1676.83 sq. fts. Subsequent to mortgage to SBI, the same property has also been equitably mortgaged to other Banks by way of depositing deed with ICICI Bank and Indian Bank, which is clear from the Investigating Agency M/s SLO Technologies Private Ltd

It is clear from the above-mentioned observations/findings of the Forensic Auditors that the erstwhile Promoters / Directors have defrauded the banks by resorting to activities which constitute offences punishable under The Bharatiya Nyaya Sanhita, 2023 and other laws.

7. Name of the Accused Persons:

S. N.	Name	Designation	Address
1	M/s Pooja Tiles and Sanitary Pvt Ltd	Company	PLOT NO 1 A, BRAHMAPUTRA INDUSTRIAL PARK, GAURIPUR, AMINGAON, City, GUWAHATI, Dist. KAMRUP METRO, State Assam India, Pin: 781031 CIN Number: U51390AS2015PTC012085
2	Mr. Manoj Kumar Goyal	Promoter-Director	Flat No 1A, First Floor, R. R. Residency, K. C. Road, Chatribari.



			Guwahati, 781001, Mob : 9864045534 DIN: 02191767 PAN: ADQPG0672H Passport No. P0899570
3	Mrs Pooja Goyal	Director	Flat No 1A, First Floor, R. R. Residency, K. C. Road, Chatribari, Guwahati, 781001, Mob : 9864045534 DIN: 02191787 PAN: AJDPG5477D Passport No. P0901919

8.	Role of accused persons including the role of public servants and CAs, Statutory Auditors, Stock Auditors & Empaneled Valuers	The aforesaid accused persons in connivance with each other and unknown others committed the crime and thereby cheated the bank as stated in Point no. 06 above
9.	Grave irregularities committed by public servants	Pursuant to declaration of the account as Fraud on 11.06.2024, Staff Accountability Examination is under progress.
10.	Role of common conspirator	The above-mentioned accused persons had conspired to commit the crime and cheated the Bank.
11.	The names and address of prosecution witnesses: 1). Shri Poonkoman R, Deputy General Manager, State Bank of India, Stressed Assets Management Branch-II, Kolkata, 10 th Floor, Jeevandeep Building, 1, Middleton Street, Kolkata 700071 2). Forensic Auditor: Shri Dhaval Mistry, Partner, M/s R Choudhary & Associates, 9/B, Vardan Complex, Near Vimal House, Lakhudi Circle, Navrangpura, Ahmedabad 380014 3). The details of other witnesses will be provided during investigation, as and when required.	
12.	Action taken by the bank against public servants including departmental proceedings initiated. If so, details thereof	SAE exercise has been closed by CGM (CCG-I) on 14.06.2023 with observation dealt with and closed However, after the account was declared as Fraud on 11.06.2024, Staff Accountability examination has been re-initiated on 28.06.2024 and it is under process.
13.	Whether investigation conducted by the Bank. If yes, details of the major findings	Other than Staff Accountability Examination as mentioned above, no internal investigation has been conducted by the Bank against the borrower. However, Forensic Audit was got conducted by State Bank of India through M/s R Choudhary & Associates and the major findings thereof in the Forensic Audit Report dated 06.12.2023 revealed commission of cognizable offences on the part of the accused persons and the same has been mentioned at Point No. 6 supra.



14.	Availability of original documents	The original loan documents are available with SBI Caps Trustee Company Ltd, 1 st Floor, Celica Park, 24 Park Street Kolkata-700016 and will be produced as and when required during investigation.
15	Whether accused persons were involved in any other fraud in the bank on an earlier occasion	Not known
16	Whether the fraud has Interstate, International ramification. If yes, give the details	Not as per available information. However, the possibility cannot be ruled out.
17	Whether registration is authorized by CVO of the Bank	The complaint is approved by the Competent Authority of the Bank and vetted by the Chief Vigilance Officer, State Bank of India, Corporate Centre, Mumbai.

In view of the above-mentioned facts and circumstances, it is requested that a criminal case may be registered against M/s Pooja Tiles and Sanitary Pvt. Ltd., its Directors / Promoters viz. Shri Manoj Kumar Goyal and Smt Pooja Goyal, unknown public servants and unknown others under relevant provisions of law for defrauding the Bank and causing wrongful loss to SBI to the tune of Rs.56.62 crores as on 31.01.2023.

The details of available Securities and Status of Recovery/Suit are enclosed herewith as Annexure -I and Annexure-II.

Yours Sincerely,

(Poonkoman R)

Deputy General Manager



[Handwritten signature]

ANNEXURE – I
Details of Securities

(Amt. in crore)

Primary

Sl. No	Description of Security	At the time of original sanction Market Value	At the time of calling up Market Value	Market Value/Realizable Value	Our Share (Realizable Value)	Date of Valuation
1	Stock of finished goods, book debts & other current assets of the company, both present and future. Hypothecation of Stock & Receivables	54.48	-	-	-	-
	Total (A)	54.48	-	-	-	-

Collateral

S. N.	Description of Securities	At the time of original sanction Market Value	At the time of calling up Market Value	Market Value/Realizable Value	Our Share (Realizable Value)	Date of Valuation
1	Flat No- A 401, 4th Floor, G K.Enclave, Kahilipara, Guwahati, 781019, (Urban), Admeasuring Total Area : 2400 sq. ft	1.31	1.26	1.26	1.13	13 07 2023
2	Flat No. 1 D2 and 1F, 1st Floor, The Kohinoor Residency, Kahilipara, , Guwahati, 781019, (Urban), Admeasuring Total Area : 1586.65 Sq FT	0.56	0.62	0.99	0.89	30 06 2023
3	Flat No. 104, situated at Flat No. 104, Core Residency, Panjabari, , Guwahati, 781037, (Urban), Admeasuring Total Area :	0.61	0.71	0.76	0.69	30 06 2023

	1526 sq. ft.					
4	Flat No B 3 N, situated at Flat No. B 3N, Block B, 3 rd Floor, Lake View Apartments Dharapur, Guwahati, 781133, (Semi Urban), Admeasuring Total Area : 1386 sq. ft	0.45	0.44	0.49	0.44	30 06 2023
5	Commercial Building Unit No 1 D, situated at Unit No 1d, 1st floor Balaji point, Athgaon, Guwahati, 781001, (Urban), Admeasuring Total Area : 741 sq. ft	0.99	0.95	0.96	0.87	30 06 2023
6	Flat No B3 S, situated at Flat No B- 3S, Block B Lake View Apartments Dharapur, Guwahati, 781133, (Semi Urban), Admeasuring Total Area : 1386 sq. ft	0.45	0.44	0.49	0.44	30 06 2023
7	Flat 6A situated at Jagdamba Apartment, ASEB Road, Villagesahar Ulubari Part II, under Mouza-Ulubari, Guwahati-781007 (urban) Admeasuring total area: 1716 sq ft together with undivided proportionate share of land measuring 3.9 lecha belonging to Mr. Manoj Kumar Goyal	0.88	0.88	0.94	0.85	30 06 2023
8	Flat 6C situated at Jagdamba Apartment, ASEB Road, Villagesahar , Ulubari Part II, under Mouza-Ulubari, Guwahati 781007(urban) Admeasuring total area: 1860 sq ft together with undivided proportionate share of land measuring 3.9 lecha belonging to Mr. Manoj Kumar Goyal	0.95	0.95	1.02	0.92	30 06 2023



9	Commercial Building bearing Survey Number : DAG NO 807,808,809,811,815 , PATTA NO 67,98,187, situated at PLOT NO 1A/B, BRAHMAPUTRA INDUSTRIAL PARK GOURIPUR, NORTH GUWAHATI, GUWAHATI - 781030, Admeasuring Total Area : 2 BIGHA 3 KATHA 10 LECHAS	6.72	40.00	42.97	38.67	13 07 2023
10	Flat No 103, situated at Flat No 103, 1st Floor, core Residency, Panjabari, Guwahati, 781037, (Urban), Admeasuring Total Area : 1595 sq. ft ,	0.64	0.74	0.80	0.72	30 06 2023
11	Commercial Unit No. 1 C, situated at Unit No. 1 C, balaji point, Athgaon, Guwahati, 781001, (Urban), Admeasuring Total Area 775 sq.ft	1.03	1.00	1.01	0.91	13 07 2023
12	Flat No 1A, situated at Flat No 1A First Floor, R R. Residency, K. C. Road, Chatribari, Guwahati, 781001,(Urban), Admeasuring Total Area : 1676.83 sq. ft ,	1.45	1.37	1.36	1.23	30 06 2023
13	Flat No F, situated at Green Valley Apartments Bhanunagar , Upper, Siliguri, 734001, (Urban), Admeasuring Total Area : 2335 sq. ft	0.70	0.73	0.78	0.66	29 05 2023
	Total (B)	16.74	50.09	53.56	48.42	
	Total (A+B)	71.22	50.09	53.56	48.42	

All the above assets belong to the Director of the Company, Mr. Manoj Kumar Goyal.



ANNEXURE – II

Details of Recovery/Suits Filed by the Bank

SARFAESI STATUS

Demand notice u/s 13(2) of SARFAESI Act, 2002 was issued on 27/03/2023. However, Demand Notices were not delivered. Subsequently, Newspaper publication of the 13(2) notice was published on 01/06/2023.

The borrower had submitted an objection to 13(2) notices on 14.07.2023 and we have replied to their objection on 25.07.2023.

Possession Notices were issued on 23.08.2023 and 31.08.2023, respectively, for Guwahati Properties and Siliguri Property. Subsequently, Newspaper publication of the Possession Notice was published on 28.08.2023 and 03.09.2023.

DM order for physical possession of the Guwahati properties was issued on 29.12.2023 and for Siliguri Property on 15.02.2024.

Subsequently, Physical Possession of 6 Collateral Properties out of 13 was taken on 20.01.2024 and 07.02.2024, all situated at Guwahati.

Meanwhile, the Borrower has filed a Securitization Application (SA) challenging the SARFAESI action taken by SBI before DRT- I, Kolkata and DRT -I, Kolkata has issued an order to maintain "Status Quo" against SARFAESI Action on 07.02.2024. Therefore, e-auction of all the properties is on hold.

Bank had filed an appeal at DRAT (MA diary no. 444/2024) on 20.05.2024 for vacation of DRT stay order. The matter was disposed of on 05.07.2024 with a direction to DRT to dispose the SA in ten weeks.

Put Up Petition has been filed before DRT for disposal of SA 26/2024 within 10 weeks. But till date SA pending for disposal.

We have filed a Securitization application challenging the E-auction Sale Notice dated 29.08.2023, issued by Indian bank before DRT, Guwahati (SA/125/2023) and same is pending for disposal.

DRT STATUS

Suit No. OA/293/2023 has been filed at DRT-I, Kolkata on 27.06.2023. Original documents verified and found in order. Last hearing was on 19.07.2024 and next hearing is scheduled on 09.04.2025 for further argument in this matter.

